

IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

14TH JUDICIAL CIRCUIT

ANDREW J. PIGORS,

Plaintiff/Movant

v.

EMILY WATSON,

Defendant

Case No. 2024-001507-DC

Hon. Jenny L. McNeill

MEMORANDUM OF LAW IN SUPPORT OF:

1. Motion to Terminate PPO and For Sanctions
2. Motion to Modify Custody and Parenting Time
3. Motion to Modify Child Support

I. TERMINATION OF PERSONAL PROTECTION ORDER

Under MCR 3.707 and MCR 3.708(H)(5), this Court has authority to terminate or modify a PPO where it is no longer necessary. The Michigan Supreme Court in **Matley v. Matley**, 293 Mich App 291 (2011),

emphasized that a PPO must be based on credible evidence of present danger. In this matter, no such evidence exists. The police report (MU2422249) directly refutes the Defendant's claims and affirms that Plaintiff's actions were protective, not threatening.

Due process violations further justify termination. **Mathews v. Eldridge**, 424 U.S. 319 (1976) requires a meaningful opportunity to be heard, which Plaintiff was denied during the contempt hearing.

II. MODIFICATION OF CUSTODY AND PARENTING TIME

Under MCL 722.27(1)(c), the Court may modify custody upon a showing of proper cause or a change in circumstances. In **Vodvarka v. Grasmeyer**, 259 Mich App 499 (2003), the Court clarified that a change must have a significant effect on the child's well-being. Defendant's interference with Plaintiff's parenting time and unilateral suspension of the week-on/week-off schedule meets this threshold.

Moreover, MCL 722.23 outlines the "best interest" factors. Plaintiff has consistently provided nurturing care and emotional stability. Defendant has obstructed the child's relationship with Plaintiff, violating factor (j) (the willingness and ability to facilitate the parent-child relationship) and (k) (domestic violence and false claims as coercion).

III. MODIFICATION OF CHILD SUPPORT

Under MCL 552.517 and MCR 3.207, child support may be modified due to changes in parenting time and financial circumstances. Defendant's willful interference with custody and receipt of employer-subsidized insurance warrants downward deviation. The Friend of the Court Manual allows adjustments when one party obstructs parenting time.

Additionally, the Court has discretion to suspend or credit support obligations when parenting time is denied

(*Olson v. Olson*, unpublished per curiam, COA #338092, 2018).

CONCLUSION

Plaintiff respectfully requests the Court:

1. Terminate the PPO and sanction Defendant for abuse of process;
2. Reinstate 50/50 custody and enforce parenting time with safeguards;
3. Reduce or eliminate child support due to unjust enrichment and interference;
4. Grant all other relief just and proper under law and equity.

Respectfully submitted,

/s/ Andrew J. Pigors

Dated: April 4, 2025